

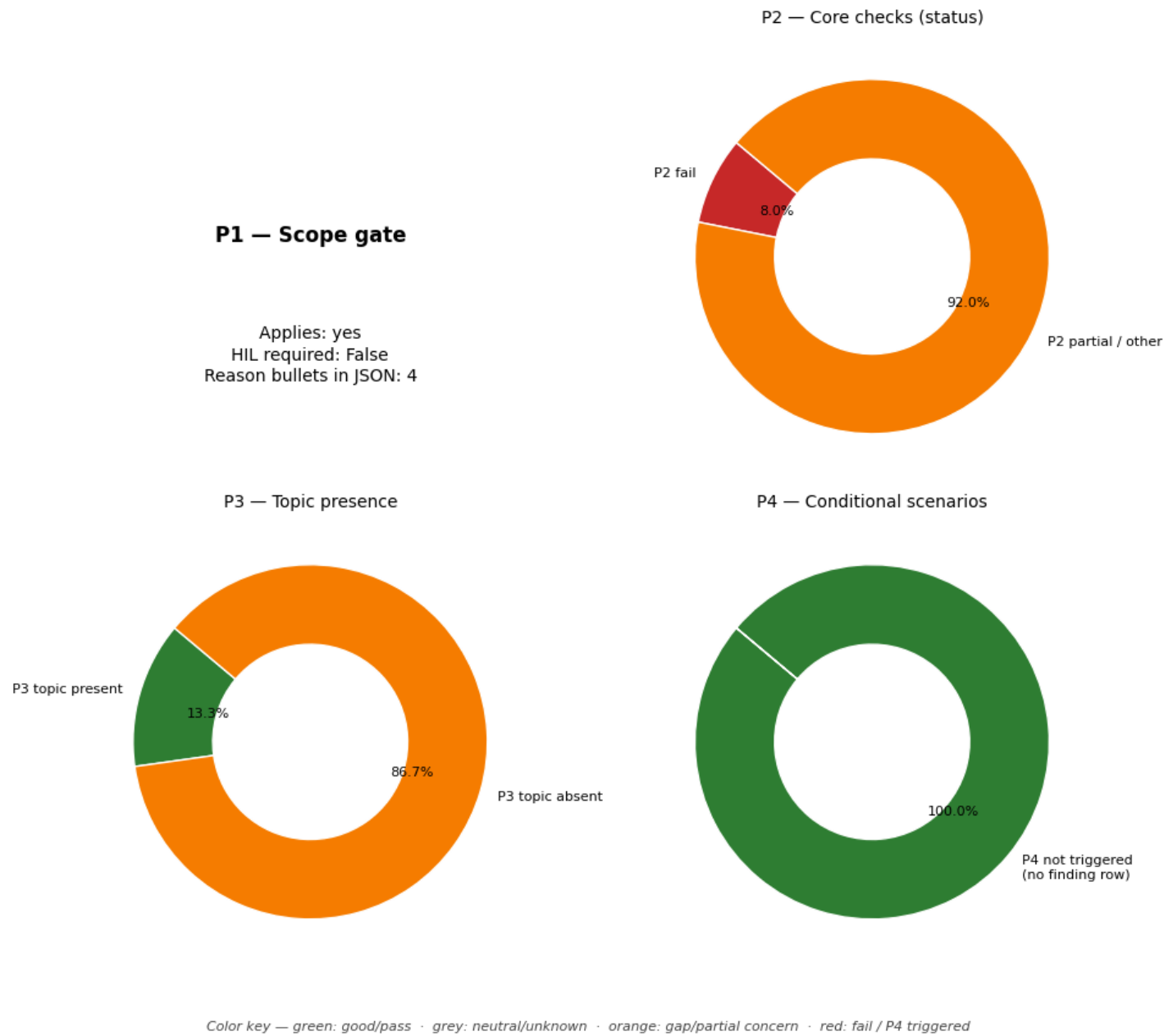
GDPR Compliance Audit Report

Target Document: ../data/testing_files/md_files_post_gdpr/test1_Yelp.md

Distribution chart (P1–P4)

(P1 = scope gate in JSON scope; P2–P4 = findings by priority.)

GDPR pipeline: P1 scope · P2 status · P3 presence · P4 conditionals



Scope assessment (P1)

Applies: **yes**
HIL required at scope: **False**

Scope reasons

- The company explicitly mentions "European Resident" and defines it as "a resident of a country in the European Economic Area ("EEA") or Switzerland". This indicates they are considering individuals within the EU/EEA.

- The policy states that "Yelp Ireland Ltd., a limited liability company established and resident under the laws of the Republic of Ireland" will be the entity serving "European Resident" users. This points to an establishment within the Union.
- The policy describes the "collection, use, and disclosure of information about you in connection with your use of our services", which includes "personal data" processing.
- The mention of "monitoring of their behaviour" in Art. 3(2)(b) implies potential applicability if user behavior within the Union is tracked.

Executive summary

Overall compliance score (P2-only index): 46%

Summary block (summary in JSON)

- **findings_total:** 40
- **hil_queue_total:** 15
- **overall_score_pct:** 46
- **p2_findings_total:** 25
- **p2_score:** 0.46
- **p3_findings_total:** 15
- **p4_articles_not_triggered:** 6
- **p4_triggered_total:** 0

Counts used in the chart

- **P2:** total 25 — fail / partial / pass / other: 2 / 23 / 0 / 0
- **P3:** total 15 — topic present / absent / unknown: 2 / 13 / 0
- **P4:** triggered (summary) 0, triggered rows in findings 0, not triggered in scope 6
- **HIL queue items:** 15

Findings breakdown (P2 / P3 / P4)

Article 5: Principles relating to processing

- **Priority:** P2
- **Chapter:** Ch.2 – Principles
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- Lawfulness, fairness and transparency
- Accuracy
- Storage limitation
- Accountability

Notes: The policy mentions data collection, use, and storage, and includes some specific examples of data collected (name, email, address, etc.). However, it does not explicitly address the principles of lawfulness, fairness, transparency, accuracy, storage limitation, or accountability in sufficient detail. While purpose limitation and data minimisation are implicitly covered by the stated uses of the data, they are not explicitly detailed as per the GDPR principles.

Article 6: Lawfulness of processing

- **Priority:** P2
- **Chapter:** Ch.2 – Principles
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- Lawful basis for processing is not explicitly stated for all processing activities.

Notes: The policy states that users consent to the collection, use, and disclosure of their information. It also lists various purposes for processing. However, it does not explicitly link each processing activity to a specific lawful basis under Article 6 of the GDPR (e.g., consent, contract, legal obligation, legitimate interest). While consent is mentioned, it's not clear if it applies to all listed processing activities or if other bases are used. More clarity is needed to map processing purposes to lawful bases.

Article 7: Conditions for consent

- **Priority:** P2
- **Chapter:** Ch.2 – Principles
- **Risk level:** HIGH
- **Status:** PARTIAL

Identified gaps

- Consent is not explicitly stated to be 'freely given', 'specific', 'informed', or 'unambiguous' in the provided policy text.
- The policy does not detail a clear mechanism for withdrawing consent that is as easy as giving consent.
- It is not explicitly stated that consent is not a condition for the performance of the service, as per Article 7(4).

Notes: The policy mentions that 'When you use the Service, you consent to our collection, use, and disclosure of information about you as described in this Privacy Policy.' However, it does not explicitly detail the conditions for consent as required by GDPR Article 7, such as whether consent is freely given, specific, informed, and unambiguous. Additionally, the mechanism for withdrawing consent is not described, nor is it clarified if consent is a condition for service provision. Therefore, the status is partial due to missing explicit information regarding these GDPR requirements.

Article 8: Child's consent

- **Priority:** P3
- **Chapter:** Ch.2 – Principles
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy explicitly states it is not directed to children under 13 and does not knowingly collect personal information from them, but it does not contain language regarding parental consent mechanisms or specific age thresholds for consent, which is the core of Article 8.

Article 9: Special category data

- **Priority:** P2
- **Chapter:** Ch.2 – Principles
- **Risk level:** HIGH
- **Status:** PARTIAL

Identified gaps

- The policy does not explicitly state how special category data is handled or if explicit consent is obtained for such data processing, or if any derogations under Article 9(2) are relied upon.

Notes: The policy does not mention the processing of special category data as defined in GDPR Article 9. It is unclear if Yelp collects or processes sensitive data such as health, biometric, racial, or religious information. Without this information, it is not possible to verify if explicit consent or any derogations under Article 9(2) are in place for such processing.

Article 10: Criminal convictions data

- **Priority:** P3
- **Chapter:** Ch.2 – Principles
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy does not mention criminal convictions data or any related concepts.

Article 11: Processing without identification

- **Priority:** P2
- **Chapter:** Ch.2 – Principles
- **Risk level:** LOW
- **Status:** PARTIAL

Identified gaps

- The policy does not explicitly state whether Yelp processes data without identification or how it handles situations where identification is not required for the stated purposes.

Notes: The policy does not contain information regarding processing without identification, nor does it address the specific requirements of Article 11 of GDPR. Therefore, compliance cannot be fully assessed.

Article 12: Transparency & modalities

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not state the time commitment for responding to data subject requests.
- The policy does not explicitly state that responses will be free of charge, except in cases of unfounded or excessive requests.

Notes: The policy mentions translating the privacy policy for convenience, and that some messages may be sent via automated SMS text messages, but does not explicitly cover the 'plain language', 'electronic means' for response, or 'free of charge' requirements of Article 12(1) and 12(5) respectively. Additionally, the policy does not detail the 1-month response commitment from Article 12(3).

Article 13: Info collected from data subject

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- Controller identity and contact details
- DPO contact details
- Legal basis for processing (explicitly stated)
- Retention period or criteria
- Recipients or categories of recipients
- Data subject rights summary (access, rectification, erasure, restriction, objection, portability, withdrawal of consent, lodging a complaint)
- Whether data provision is statutory/contractual and consequences of failure
- Existence and logic of automated decision-making/profiling

Notes: The policy provides information on the identity of the controller(s) (Yelp Inc. or Yelp Ireland Ltd. based on residency) and their headquarters/establishment location. However, specific contact details for the controller and DPO are missing. The purposes of processing are listed, but the legal basis is not explicitly stated. Retention periods are not mentioned, nor are the recipients of personal data. Information about data subject rights, whether data provision is mandatory, and details on automated decision-making/profiling are also absent.

Article 14: Info not obtained from data subject

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not state from which source the personal data is obtained when not collected directly from the data subject.
- The policy does not mention whether the data is from publicly accessible sources.
- The policy does not mention the existence of automated decision-making, including profiling, nor information about the logic involved, significance, and envisaged consequences.

Notes: The policy mentions that information may be shared with third parties and that third parties may share information with the company. However, it does not specify the source of data when it is not obtained directly from the data subject, nor does it address automated decision-making, profiling, or the logic involved. This leads to a partial compliance status.

Article 15: Right of access

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not specify the timeframe for responding to SAR requests.
- The policy does not detail what information will be provided as part of a SAR response.
- The policy does not explicitly state that a copy of the personal data will be provided.

Notes: The policy mentions that identity verification steps will be taken before sharing personal data, and that European residents have the right to access their personal data. However, it does not specify the response timeline (e.g., one month) or what specific information will be provided in response to a Subject Access Request (SAR), nor does it explicitly state that a copy of the personal data will be provided.

Article 16: Right to rectification

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not mention that the rectification of inaccurate personal data must be done 'without undue delay'.

Notes: The policy confirms the right to request correction or update of personal data for European residents, but it does not specify the timeframe ('without undue delay') for this action.

Article 17: Right to erasure

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not describe the specific grounds for refusing a deletion request.
- The policy does not describe any retention exceptions that would prevent data from being deleted upon request.
- The policy does not describe the process for data subjects to request the deletion of their personal data.

Notes: The policy confirms the right to deletion for European residents and directs users to the Support Center for more information. However, it does not detail the process for making such a request, the grounds for refusal, or any exceptions to deletion, which are required by Article 17.

Article 18: Right to restriction

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not explicitly describe the process or conditions under which a data subject can request a restriction of processing, nor does it detail the controller's obligations in response to such a request, beyond general rights for European residents.

Notes: The policy mentions the right to restrict processing for European Residents but lacks specific details on how this right is implemented or what constitutes grounds for restriction as per GDPR Article 18. The policy indicates that additional information is available through the Support Center, suggesting a potential gap in the provided text for a complete assessment.

Article 19: Notification on rectification/erasure

- **Priority:** P3
- **Chapter:** Ch.3 – Rights of data subjects
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy excerpt does not contain information regarding the notification of recipients upon rectification or erasure of personal data. The provided chunks and full excerpt focus on data collection, usage, security, and user rights, but lack specifics on downstream notifications to third parties or other recipients.

Article 20: Right to data portability

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not mention the right to transmit data to another controller without hindrance.
- The policy does not specify if the data is provided in a structured, commonly used, and machine-readable format.
- The policy does not specify if the processing is carried out by automated means.

Notes: The policy mentions that Yelp collects, transmits, and stores information about users. However, it does not explicitly state that this data is provided in a structured, commonly used, and machine-readable format, nor does it mention the right to transmit this data to another controller without hindrance. The policy also does not clarify whether the processing is carried out by automated means, which is a condition for the right to data portability under GDPR Article 20(1)(b).

Article 21: Right to object

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not explicitly state how users can object to direct marketing or profiling.
- The policy does not mention if objections can be made by automated means.

Notes: The policy mentions that users can opt-in to receive messages and manage some preferences, but it does not explicitly detail the right to object to direct marketing or profiling, nor does it specify if this objection can be made via automated means as required by GDPR Article 21.

Article 22: Automated decision-making

- **Priority:** P2
- **Chapter:** Ch.3 – Rights of data subjects
- **Risk level:** CRITICAL
- **Status:** FAIL

Identified gaps

- Disclosure of automated decision-making
- Right to human review of automated decisions
- Right to contest automated decisions

Notes: The policy mentions automated SMS text messages for transactions, but there is no information regarding decisions based solely on automated processing, including profiling, that produce legal or similarly significant effects. There is also no mention of the right to human intervention, to express a point of view, or to contest such decisions. Therefore, the company policy does not address the requirements of GDPR Article 22.

Article 24: Responsibility of the controller

- **Priority:** P2
- **Chapter:** Ch.4 – Controller & processor
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not explicitly state that the controller shall implement appropriate technical and organisational measures to ensure and demonstrate compliance with GDPR.
- The policy does not mention the implementation of data protection policies by the controller where proportionate to processing activities.

- The policy does not mention adherence to approved codes of conduct or certification mechanisms as an element to demonstrate compliance.

Notes: The policy mentions taking steps to safeguard information and ensuring an adequate level of data protection, which implies the implementation of measures. However, it does not explicitly state the obligation to implement appropriate technical and organisational measures to ensure and demonstrate compliance, nor does it mention the implementation of data protection policies or adherence to codes of conduct/certification mechanisms as per Article 24.

Article 25: Privacy by design and default

- **Priority:** P3
- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Article 26: Joint controllers

- **Priority:** P3
- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy does not mention joint controllers or agreements between controllers.

Article 27: Representatives (non-EU)

- **Priority:** P3
- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy mentions Yelp Inc. is a Delaware corporation with headquarters in San Francisco, California, and Yelp Ireland Ltd. for European Residents. This implies the company operates in the EU but does not explicitly address the appointment of a non-EU representative as required by Article 27.

Article 28: Processor / DPA

- **Priority:** P2
- **Chapter:** Ch.4 – Controller & processor
- **Risk level:** CRITICAL
- **Status:** PARTIAL

Identified gaps

- The policy does not mention an explicit sub-processor list. It is not clear if there is a mechanism to inform the controller of changes to sub-processors.
- There is no mention of audit rights for the controller to verify compliance.
- The policy does not specify the obligation to delete or return personal data after the provision of services.
- There is no explicit mention of processing personal data only on written instructions from the controller.

Notes: The policy lacks specific clauses required by Article 28 of GDPR, particularly regarding sub-processors, audit rights, data deletion/return, and processing based on written instructions. The provided text focuses on data collection and usage for service provision and communication, not on the contractual obligations between a controller and processor.

Article 29: Processing under authority

- **Priority:** P2
- **Chapter:** Ch.4 – Controller & processor
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not specify if any persons acting under the authority of Yelp (e.g., employees, contractors) are instructed on how to process personal data only on Yelp's instructions, unless required by law.

Notes: The policy does not contain information regarding instructions provided to individuals processing data under Yelp's authority, specifically concerning the requirement to process data only on Yelp's instructions, as stipulated by GDPR Article 29.

Article 30: Records of processing (ROPA)

- **Priority:** P2
- **Chapter:** Ch.4 – Controller & processor
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- purposes of the processing
- categories of data subjects
- categories of personal data
- categories of recipients
- transfers of personal data to a third country or an international organisation
- envisaged time limits for erasure of the different categories of data
- general description of the technical and organisational security measures

Notes: The policy mentions collection and storage of various data points, and sharing with third parties, but does not explicitly detail the purposes of processing, categories of data subjects and data, recipients, retention periods, or security measures in a structured manner as required by Article 30. The information about "legal basis" for European residents does not fulfill the requirement for a Record of Processing Activities (ROPA).

Article 32: Security of processing

- **Priority:** P3
- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** True
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy mentions safeguards and security but does not detail specific measures like encryption or access controls. It also lacks mention of incident response or testing. Therefore, while the topic is present, the operational details requested by the agent action are absent.

Article 33: Breach notification to SA

- **Priority:** P3

- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy does not contain information regarding breach notification procedures to a supervisory authority or the establishment of a 72-hour timeline for such notifications. It also does not mention operational breach logs or their review by humans.

Article 34: Breach communication to data subject

- **Priority:** P3
- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy does not contain information about procedures for communicating data breaches to data subjects, as required by GDPR Article 34.

Article 35: DPIA

- **Priority:** P3
- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy does not mention Data Protection Impact Assessments (DPIAs) or similar risk assessment procedures related to high-risk processing activities as required by Article 35 of the GDPR. The policy focuses on data collection, use, disclosure, and user rights, but does not include any provisions for conducting DPIAs.

Article 37: DPO designation

- **Priority:** P2
- **Chapter:** Ch.4 – Controller & processor

- **Risk level:** HIGH
- **Status:** PARTIAL

Identified gaps

- The policy does not mention whether the company is a public authority or body.
- The policy does not explicitly state if the company performs large-scale monitoring of data subjects.
- The policy does not confirm whether the core activities involve processing special categories of data or data relating to criminal convictions on a large scale.
- The policy does not provide contact details for a Data Protection Officer.

Notes: The provided policy text does not contain information regarding the designation of a Data Protection Officer (DPO) as required by GDPR Article 37. Specifically, it does not address whether the company's activities fall under the criteria for mandatory DPO designation (public authority, large-scale monitoring, or processing special categories of data). Furthermore, the contact details of a DPO are not published. Therefore, the status is partial, and the risk is high due to the lack of information on a critical GDPR compliance aspect.

Article 38: DPO position

- **Priority:** P3
- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy does not mention the appointment, role, or position of a Data Protection Officer (DPO) or any specific language regarding their independence. Therefore, Article 38 is not addressed.

Article 39: DPO tasks

- **Priority:** P2
- **Chapter:** Ch.4 – Controller & processor
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The DPO mandate does not explicitly cover advising on DPIAs, monitoring DPIA performance, cooperating with the supervisory authority, or acting as a contact point for the supervisory authority.

Notes: The provided policy text does not contain any information regarding the tasks or mandate of a Data Protection Officer (DPO). Therefore, it's impossible to verify if the DPO mandate covers advising, monitoring compliance, DPIA involvement, or cooperation with the supervisory authority. The policy only describes Yelp's general data handling practices.

Article 40: Codes of conduct

- **Priority:** P3
- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The provided policy text does not contain any mention or discussion of codes of conduct, adherence to codes of conduct, or any regulatory approval processes related to such codes. Article 40 of the GDPR pertains to these specific topics, which are absent in the given Yelp privacy policy.

Article 42: Certification

- **Priority:** P3
- **Chapter:** Ch.4 – Controller & processor
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy does not mention certifications or claims related to them. It does mention professional licenses or certifications in the context of professional background information for businesses, but this is not related to the GDPR Article 42 topic of data protection certification.

Article 44: General principle for transfers

- **Priority:** P2
- **Chapter:** Ch.5 – Transfers to third countries
- **Risk level:** MEDIUM
- **Status:** PARTIAL

Identified gaps

- The policy does not explicitly state that all international transfers comply with Chapter 5 mechanisms. While it mentions safeguarding information and ensuring an adequate level of data protection in accordance with EU standards, it doesn't detail the specific mechanisms used for all transfers.

Notes: The policy mentions that for European Residents, personal information may be transferred outside the EEA/Switzerland, and that steps are taken to safeguard this information, including the use of Standard Contractual Clauses. However, it does not explicitly state that ALL international transfers (beyond those involving European Residents) comply with Chapter 5 mechanisms, nor does it detail the specific mechanisms for all types of transfers. Therefore, it's only partially compliant.

Article 45: Adequacy decision transfers

- **Priority:** P2
- **Chapter:** Ch.5 – Transfers to third countries
- **Risk level:** CRITICAL
- **Status:** PARTIAL

Identified gaps

- The policy does not specify whether Yelp transfers personal data to third countries or international organizations.
- The policy does not mention adequacy decisions or any other mechanisms for ensuring adequate protection of personal data transferred to third countries or international organizations.

Notes: The policy does not contain any information regarding international data transfers or the mechanisms used to ensure the adequacy of protection for such transfers. Therefore, compliance with Article 45 cannot be verified.

Article 46: Transfers with safeguards

- **Priority:** P3
- **Chapter:** Ch.5 – Transfers to third countries
- **Policy present:** True
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Article 47: Binding corporate rules

- **Priority:** P3

- **Chapter:** Ch.5 – Transfers to third countries
- **Policy present:** False
- **Risk level:** NONE
- **Status:** N/A (P3/P4 OR UNSCORED)

Notes: The policy does not mention Binding Corporate Rules (BCR) or any related concepts like DPA approval for such rules. The provided text focuses on general privacy policies, data collection, use, and disclosure, user rights, and compliance with laws like CCPA and Nevada law.

Article 77: Right to lodge a complaint

- **Priority:** P2
- **Chapter:** Ch.8 – Remedies, liability & penalties
- **Risk level:** HIGH
- **Status:** PARTIAL

Identified gaps

- Policy does not inform data subjects of their right to lodge a complaint with a supervisory authority.
- Policy does not inform data subjects of how to lodge a complaint with a supervisory authority.

Notes: The policy does not mention the right to lodge a complaint with a supervisory authority or how to do so. This is a high-risk gap as it directly relates to a data subject's fundamental rights under GDPR.

Article 88: Employment context

- **Priority:** P2
- **Chapter:** Ch.9 – Specific processing situations
- **Risk level:** CRITICAL
- **Status:** FAIL

Identified gaps

- Recruitment
- Performance of the contract of employment
- Management, planning and organisation of work

- Equality and diversity in the workplace
- Health and safety at work
- Protection of employer's or customer's property
- Exercise and enjoyment of rights and benefits related to employment
- Termination of the employment relationship

Notes: The provided policy text does not contain any information related to the processing of employee data in the employment context, such as recruitment, monitoring, health and safety, or termination. Therefore, it is not possible to assess compliance with Article 88.

Human-in-the-loop (HIL) review queue

- Article 8: Child's consent** - Type: p3_verify - Notes: The policy explicitly states it is not directed to children under 13 and does not knowingly collect personal information from them, but it does not contain language regarding parental consent mechanisms or specific age thresholds for consent, which is the core of Article 8.
- Article 10: Criminal convictions data** - Type: p3_verify - Notes: The policy does not mention criminal convictions data or any related concepts.
- Article 19: Notification on rectification/erasure** - Type: p3_verify - Notes: The policy excerpt does not contain information regarding the notification of recipients upon rectification or erasure of personal data. The provided chunks and full excerpt focus on data collection, usage, security, and user rights, but lack specifics on downstream notifications to third parties or other recipients.
- Article 25: Privacy by design and default** - Type: p3_verify - Notes: None
- Article 26: Joint controllers** - Type: p3_verify - Notes: The policy does not mention joint controllers or agreements between controllers.
- Article 27: Representatives (non-EU)** - Type: p3_verify - Notes: The policy mentions Yelp Inc. is a Delaware corporation with headquarters in San Francisco, California, and Yelp Ireland Ltd. for European Residents. This implies the company operates in the EU but does not explicitly address the appointment of a non-EU representative as required by Article 27.
- Article 32: Security of processing** - Type: p3_verify - Notes: The policy mentions safeguards and security but does not detail specific measures like encryption or access controls. It also lacks mention of incident response or testing. Therefore, while the topic is present, the operational details requested by the agent action are absent.
- Article 33: Breach notification to SA** - Type: p3_verify - Notes: The policy does not contain information regarding breach notification procedures to a supervisory authority or the establishment of a 72-hour timeline for such notifications. It also does not mention operational breach logs or their review by humans.
- Article 34: Breach communication to data subject** - Type: p3_verify - Notes: The policy does not contain information about procedures for communicating data breaches to data subjects, as required by GDPR Article 34.
- Article 35: DPIA** - Type: p3_verify - Notes: The policy does not mention Data Protection Impact Assessments (DPIAs) or similar risk assessment procedures related to high-risk processing activities as required by Article 35 of the GDPR. The policy focuses on data collection, use, disclosure, and user rights, but does not include any provisions for conducting DPIAs.
- Article 38: DPO position** - Type: p3_verify - Notes: The policy does not mention the appointment, role, or position of a Data Protection Officer (DPO) or any specific language regarding their independence. Therefore, Article 38 is not addressed.
- Article 40: Codes of conduct** - Type: p3_verify - Notes: The provided policy text does not contain any mention or discussion of codes of conduct, adherence to codes of conduct, or any regulatory approval processes related to such codes. Article 40 of the GDPR pertains to these specific topics, which are absent in the given Yelp privacy policy.
- Article 42: Certification** - Type: p3_verify - Notes: The policy does not mention certifications or claims related to them. It does mention professional licenses or certifications in the context of professional background information for businesses, but this is not related to the GDPR Article 42 topic of data protection certification.
- Article 46: Transfers with safeguards** - Type: p3_verify - Notes: None
- Article 47: Binding corporate rules** - Type: p3_verify - Notes: The policy does not mention Binding Corporate Rules (BCR) or any related concepts like DPA approval for such rules. The provided text focuses on general privacy policies, data collection, use, and disclosure, user rights, and compliance with laws like CCPA and Nevada law.